

Assignment Brief: Critical Analysis of Rights, Regulation, and Dispute Resolution in Institutional Care

Course/Module: Advanced Healthcare Ethics, Law, and Quality Management

Assessment Weight: 100 Marks (100% of Assignment Grade)

Format: Short Essay / Critical Responses

Expected Length: 300–450 words per question (3,000–4,500 words total)

Instructions to Students

This assignment requires you to critically evaluate contemporary frameworks in institutional care, ethics, law, and quality improvement. While these themes may have been introduced in course webinars, **every response must be grounded in independent external research.**

You must cite external literature, legal statutes, sociological concepts, or comparative international frameworks as specified in each prompt. Ensure all sources are correctly cited using the required academic referencing style (e.g., APA 7th Edition).

Part A: Ethics, Rights, and Sociological Dynamics

1. The Rights-Based Approach (10 Marks)

The webinar emphasizes transitioning to a "rights-based approach" in care settings. Using external literature outside the provided course materials, define what a rights-based approach entails in institutional care. Critically analyze the potential systemic or financial barriers to implementing this model effectively.

2. Institutional Dependency (10 Marks)

Older adults often experience a power imbalance and fear retribution when speaking up. Research the sociological concept of "institutional dependency." Use this concept to explain a resident's reluctance to complain, and propose two structural interventions an institution could implement to mitigate this power dynamic.

3. Intersecting and Conflicting Rights (10 Marks)

Fulfilling one resident's right may occasionally infringe upon another's ("intersecting rights"). Using an established ethical decision-making framework from external research (e.g., the Four Principles approach, PLUS decision-making model), analyze a hypothetical scenario involving a direct conflict of rights between two vulnerable individuals in a care facility.

Part B: Law, Compliance, and Regulation

4. Apology Laws and Litigation Risk (10 Marks)

The "Four A's" of complaint handling highlight the importance of an apology to rebuild trust. Relying on external legal and medical literature, investigate "Apology Laws" in various jurisdictions. Determine and analyze how offering a formal apology impacts the statistical likelihood of medical malpractice litigation.

5. Whistleblower Protections and Enforcement (10 Marks)

Under the discussed healthcare framework, whistleblower protections are automatically applied to certain disclosures. Compare this mechanism with external whistleblower legislation from highly regulated industries outside of healthcare, such as aviation or finance. Identify and evaluate the key differences in anti-retaliation enforcement mechanisms.

6. Assessing Decision-Making Capacity (10 Marks)

The regulatory model presumes individuals have the capacity to make their own decisions unless proven otherwise. Investigate your local jurisdiction's specific external legal and clinical thresholds for determining "decision-making capacity." Outline the exact assessments required to legally transfer decision-making authority to a representative or proxy.

7. Responsive Regulation (10 Marks)

An independent regulatory body can take proportionate enforcement actions against non-compliant providers (e.g., geographic operating restrictions). Using external public policy research, evaluate the theory of "responsive regulation." Compare the effectiveness of government-led sanctions versus industry self-regulation in sectors managing vulnerable populations.

Part C: Quality Improvement and Dispute Resolution

8. Continuous Quality Improvement (CQI) (10 Marks)

Providers must use complaints as a learning opportunity for continuous improvement. Explore a formal CQI methodology, such as the Plan-Do-Study-Act (PDSA) cycle or Six Sigma, drawing from external business or healthcare literature. Detail exactly how qualitative, narrative complaint data can be systematically processed through your chosen cycle.

9. Procedural Fairness and Vexatious Complainants (10 Marks)

Facilities are advised against immediately cutting off communication with complainants whose behaviors are deemed vexatious. Research external administrative law principles regarding "procedural fairness." Design a step-by-step communication protocol that protects staff from abuse while legally preserving the complainant's fundamental right to be heard.

10. International Comparative Systems (10 Marks)

The overarching goal of care reforms is to ensure safe, person-centered complaint handling. Research the elder care grievance and quality-assurance system of another nation known for innovative practices (e.g., the Netherlands, Japan, or Denmark). Compare their national approach to resolving complaints and upholding human rights with standard models discussed in the course.

Marking Scheme & Grading Rubric (100 Marks Total)

Each of the 10 questions is worth **10 marks**, assessed against the following criteria:

Evaluation Criteria	Weight per Question	Description
Research & Application	4 Marks	Effectively integrates required external literature, legal statutes, or theoretical frameworks. Demonstrates deep understanding of the concepts rather than surface-level definitions.
Critical Analysis	4 Marks	Moves beyond mere description. Provides logical, well-reasoned evaluation, compares systems effectively, and proposes practical, evidence-based solutions.
Clarity & Referencing	2 Marks	Responses are professionally structured, concise, and articulate. Citations and references strictly adhere to required academic standards.

Per-Question Rubric Breakdown

Grade Band	Marks	Characteristic of the Response

High Distinction	9 - 10	Exceptional synthesis of external research. Argument is highly critical, nuanced, and perfectly directly addresses all parts of the prompt. Flawless referencing.
Distinction	7.5 - 8.5	Strong integration of external concepts. Solid analysis with clear logical flow. Minor gaps in depth or minor formatting issues.
Credit	6 - 7	Adequate research, though relies on basic definitions. Analysis is present but lacks critical depth or systemic insight. Competent writing and referencing.
Pass	5 - 5.5	Barely addresses the prompt. Heavy reliance on course materials rather than independent external research. Descriptive rather than analytical.
Fail	0 - 4.5	Fails to answer the prompt. Missing external research entirely. Poorly structured, lacking citations, or demonstrating fundamental misunderstandings of the topic.